

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

**14. COUNTY OF EL DORADO V. DEVON MATHIS (OTHER PARENT: AUBREY HASKILL)
PFS20210070**

Other Parent filed a Request for Order (RFO) on March 12, 2026, requesting the court quash the RFO filed by Respondent on February 27, 2026. Proof of Service shows the Department of Child Support Services was served on March 19, 2026. Upon review of the file, there is no Proof of Service showing Respondent was properly served.

The matter is dropped from calendar due to the lack of proper service.

TENTATIVE RULING #14: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

15. AIMEE ELSE V. DANIEL ELSE

PFL20190360

Petitioner filed a Request for Order (RFO) on February 3, 2026, requesting a modification of visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on March 19, 2026 and a review hearing set for May 7, 2026. Proof of Service shows the Department of Child Support Services (DCSS) was personally served on February 9, 2026. Respondent was served by certified mail, with a return receipt showing Respondent signed for the mail on February 13, 2026.

Petitioner is seeking orders that the minors not have parenting time with Respondent until the issues of the sanitary conditions in the home have been resolved. Petitioner is seeking proof of a clean and safe environment for the minors prior to their travel to Arkansas.

Only Petitioner appeared for CCRC. As such a single parent report was filed with the court on March 19, 2026. Copies were mailed to the parties on March 25th.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court grants Petitioner's request. The minors are not to travel to Arkansas for Respondent's parenting time until Respondent provides Petitioner with proof that the home is in a clean and sanitary condition. The prior orders regarding proof of fumigation remain in full force and effect.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE COURT GRANTS PETITIONER'S REQUEST. THE MINORS ARE NOT TO TRAVEL TO ARKANSAS FOR RESPONDENT'S PARENTING TIME UNTIL RESPONDENT PROVIDES PETITIONER WITH PROOF THAT THE HOME IS IN A CLEAN AND SANITARY CONDITION. THE PRIOR ORDERS REGARDING PROOF OF FUMIGATION REMAIN IN FULL FORCE AND EFFECT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND